

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ARIELLE MCCREADY and JUAN COSME,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JASON MERCHAN AND
JOHN and JANE DOES "1-10" Individually and
officially in their capacities as police officers,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
Plaintiff's address

Plaintiffs reside at:
1255 Findlay Ave, Apt# BB
Bronx, NY 10456
County of Bronx

To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 15, 2022



JOHN K. KOUROUPAS
GREENBERG & STEIN, P.C.
Attorney for Plaintiffs
ARIELLE MCCREADY & JUAN COSME
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535
Our File No. 7241

TO:
City of New York
1 Centre Street
New York, NY 10007

POLICE OFFICER JASON MERCHAN, SHIELD NO.: 012777
NARBBX
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ARIELLE MCCREADY and JUAN COSME,

Plaintiffs,

VERIFIED COMPLAINT

Index No.:

Date Purchased:

-against-

THE CITY OF NEW YORK, JASON MERCHAN AND
JOHN AND JANE DOES "1-10" Individually and
officially in their capacities as police officers,Defendants.
-----X

Plaintiffs, by their attorneys, GREENBERG & STEIN, P.C., for their complaints against the above Defendants, THE CITY OF NEW YORK, JASON MERCHAN AND JOHN and JANE DOES "1-10", Individually and officially in their capacities as police officers, allege and state as follows:

1. This is a civil rights action in which Plaintiffs seek relief through 42 U.S.C. §§ 1983 and 1988 for the violations of their civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.

2. Plaintiffs claims arise from a January 14, 2022 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Plaintiffs **ARIELLE MCCREADY** and **JUAN COSME**. As a direct and proximate result, Plaintiffs were unlawfully detained and deprived of their liberty. Plaintiffs were maliciously prosecuted until all charges were dismissed.

3. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, Arielle McCready (hereinafter referred to as “Ms. McCready”), resides at 1255 Findlay Avenue, Apt BB, Bronx, NY 10456. Ms. McCready was unlawfully arrested.

5. Plaintiff, Juan Cosme (hereinafter referred to as “Mr. Cosme”), resides at 1255 Findlay Avenue, Apt BB, Bronx, NY 10456. Mr. Cosme was unlawfully arrested.

6. Defendant, City of New York (hereinafter referred to as “City”), is a municipal corporation organized under the laws of the State of New York.

7. That on March 2, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That on May 17, 2022, pursuant to General Municipal Law 50-h, a hearing was held with all Plaintiffs at the Office of the New York City Comptroller or at the office of a designated agent.

9. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

10. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

11. Defendant, JASON MERCHAN, (hereinafter referred to as “MERCHAN”), was, at all times here relevant, an officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant MERCHAN, was, at the time relevant herein, a police officer under Shield No. 012777 of the NARBBX, located at 1 Police Plaza, New York, NY 10038. Defendant MERCHAN is being sued in his individual and official capacities.

12. At all times here relevant, Defendants **MERCHAN and JOHN OR JANE DOES “1-10”** were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants JOHN OR JANE DOES “1-10” as such knowledge is in the exclusive possession of the defendants.

13. At all times here relevant, Defendants **MERCHAN and JOHN OR JANE DOES “1-10”** were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, JOHN OR JANE DOE “1-10” are being sued in their individual and official capacities.

14. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

15. Plaintiff has complied with defendants City’s request to sit for an oral examination, pursuant to GML§ 50-h or such request was untimely noticed, thus resulting in a waiver of defendant City’s entitlement to said oral examination.

16. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

17. That by reason of the foregoing, Plaintiff was damaged in sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FACTUAL CHARGES

18. On January 14, 2022, at approximately 6:00a.m., Ms. McCready and Mr. Cosme were lawfully at 1117 Tinton Avenue, County of the Bronx, State of New York.

19. At all relevant times, Defendants, including **MERCHAN** did not have a valid, judicially authorized arrest warrant for Ms. McCready or Mr. Cosme.

20. Defendants, including **MERCHAN** falsely arrested, unlawfully imprisoned and illegally searched and seized Ms. McCready or Mr. Cosme.

21. Defendants, including **MERCHAN** falsely claimed that Ms. McCready or Mr. Cosme were in criminal possession of contraband.

22. Defendants, including **MERCHAN**, unlawfully entered said private property and illegally searched the apartment wherein Ms. McCready or Mr. Cosme were visiting and illegally removed them from said premises with no legal justification.

23. Plaintiffs were not in actual, constructive, or statutory possession of contraband, and had not committed any crime or violation of the law.

24. Defendants, including **MERCHAN** did not possess probable cause or other justification for the arrest or seizure of Ms. McCready's person.

25. Defendants, including **MERCHAN** did not possess probable cause or other justification for the arrest or seizure of Mr. Cosme's person.

26. Plaintiffs had multiple assaults and batteries, committed to their person, by defendants City of New York and the above named officers, including but not limited to Defendants, including **MERCHAN**.

27. As a result of Defendants knowingly and intentionally made false statements and allegations, Plaintiffs were falsely arrested and charged with criminal possession of contraband that Defendants falsely claimed was committed by Plaintiffs.

28. At all relevant times, Defendants, including **MERCHAN**, intentionally provided said false information that would be likely to influence a prosecutor's decision to charge plaintiffs with a crime or violation of the law so that a criminal prosecution would be initiated against Plaintiffs.

29. Defendants, including **MERCHAN**, were fully aware that Plaintiffs did not reside at said premises, but Defendants including **MERCHAN** knowingly and intentionally decided to fabricate said observation to justify an otherwise invalid arrest and to ensure that Plaintiff was maliciously prosecute and ultimately convicted.

30. Upon arrival at said location or while plaintiffs remained detained at a NYPD precinct, they were illegally searched, questioned, photographed and fingerprinted by, or at the direction of Defendants including **MERCHAN**.

31. Defendants, **MERCHAN** was Ms. McCready's arresting officer and signed his criminal court complaint for Plaintiff McCready under Arrest Number B22601292, knowingly and falsely accusing Ms. McCready of criminal possession of contraband and other related charges, all of which Defendants knew to be untrue.

32. Defendants, **MERCHAN** was Mr. Cosme's arresting officer and signed his criminal court complaint for Plaintiff McCready under Arrest Number B22601289, knowingly and falsely accusing Mr.

Cosme of criminal possession of contraband and other related charges, all of which Defendants knew to be untrue.

33. Ms. McCready was arraigned and formally charged with criminal possession of contraband.

34. Mr. Cosme was arraigned and formally charged with criminal possession of contraband.

35. At no point did the Defendants including **MERCHAN**, ever observe Plaintiffs in criminal possession of contraband.

36. At no point were the Defendants including **MERCHAN**, ever informed by any witnesses that Plaintiffs committed any crime or violation of the law.

37. Plaintiffs were compelled to return to court, multiple times, to contest the false charges levied against them, Defendants including **MERCHAN**.

38. The charges against Ms. McCready were unconditionally dismissed pursuant to CPL § 160.50, representing a termination of the criminal charges in Ms. McCready's favor.

39. The charges against Mr. Cosme were unconditionally dismissed pursuant to CPL § 160.50, representing a termination of the criminal charges in Mr. Cosme's favor.

40. Defendants, including **MERCHAN**, never possessed probable cause to believe a prosecution would succeed against Plaintiffs, or that Plaintiffs were guilty of any crime, as defendants were fully aware that any evidence against Plaintiffs were either fraudulent or fabricated, including the observation provided by Defendants including **MERCHAN**, in which Plaintiffs were falsely accused of criminal possession of contraband.

41. While Plaintiffs were unlawfully detained, Defendants, including **MERCHAN** acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiffs prosecuted for criminal possession of contraband.

42. Defendants, including **MERCHAN** intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely arresting an individual without probable cause.

43. Defendants, including **MERCHAN** suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against plaintiffs.

44. At all times relevant hereto, Defendants, including **MERCHAN** and **John or Jane Does “1-10”**, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause or using excessive force to effectuate their arrest.

45. At all times relevant hereto, Defendants, including **MERCHAN** and **John or Jane Does “1-10”**, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff’s wrongful arrest and subsequent malicious criminal prosecution.

46. Plaintiffs assert that the Defendants, including **MERCHAN** and **John or Jane Does “1-10”**, who violated plaintiff’s civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

47. The individually named defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly

engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

48. In a report by *NBC Channel 4 News, New York*, entitled “Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times,” by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney’s Office for the Southern District of New York. Another article from *citylimits.org*, entitled “CityViews: Is NYPD Oversight Really making Homeless Shelters Safer,” by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

49. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD’s obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD’s alarming tendency to, instead, reward and promote these officers, including those who were inculpated via some incontrovertible form of evidence.

50. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

51. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

52. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies

resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

53. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

54. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

55. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

56. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of

probable cause, reasonable suspicion or the appropriate amount of force to be used.

57. Defendants' actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

58. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD, and City of New York.

59. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

60. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City

of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including (Names of Officers) and John or Jane Does 1-10.

61. As a direct and proximate result of the acts of Defendants, including MERCHAN Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

62. Plaintiff re-alleges and re-avers Paragraph 1 through 61 of this Complaint as if fully set forth herein.

63. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

64. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to their person and property.

65. Plaintiffs did not consent to the unreasonable searches and seizures to his person or property.

66. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

67. Accordingly, defendants violated plaintiffs right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

68. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the Damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

70. Plaintiffs re-allege and re-avers Paragraph 1 through 69 of this Complaint as if fully set forth herein.

71. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

72. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to his person and property.

73. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

74. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

75. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

77. Plaintiffs re-allege and re-avers Paragraph 1 through 76 of this Complaint as if fully set forth herein.

78. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

79. Plaintiffs were conscious of their confinement.

80. Plaintiffs did not consent to their confinement.

81. Plaintiff's arrest and false imprisonment was not otherwise privileged.

82. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

84. Plaintiffs re-allege and re-avers Paragraphs 1 through 83 of this Complaint as if fully set forth herein.

85. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

86. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

87. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

88. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

89. Plaintiffs re-allege and re-avers Paragraph 1 through 88 of this Complaint as if fully set forth herein.

90. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

91. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered his without his consent.

92. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

94. Plaintiffs re-allege and re-avers Paragraphs 1 through 93 of this Complaint as if fully set forth herein.

95. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

96. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without his consent.

97. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

98. Plaintiffs re-allege and re-avers Paragraph 1 through 97 of this Complaint as if fully set forth herein.

99. Defendants initiated the prosecution against Plaintiffs.

100. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

101. Defendants acted with malice.

102. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

105. Plaintiffs re-allege and re-avers Paragraphs 1 through 104, of this Complaint as if fully set forth herein.

106. Defendants initiated the prosecution against Plaintiffs.

107. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

108. Defendants acted with malice.

109. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

110. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

112. Plaintiffs re-allege and re-avers Paragraphs 1 through 111 of this Complaint as if fully set forth herein.

113. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

114. Defendants' actions deprived Plaintiffs of their right to a fair trial and caused post-arraignment restrictions to be imposed on their liberty and freedom of movement.

115. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 .S.C. § 1983 Against Individual Defendants

118. Plaintiff re-alleges and re-avers Paragraphs 1 through 117 of this Complaint as if fully set forth herein.

119. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

120. Defendants' actions deprived Plaintiffs of their right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement, including his post-arraignment detainment.

121. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

122. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTIONFailure to Intervene Under
New York State Law

123. Plaintiff re-alleges and re-avers Paragraphs 1 through 122 of this Complaint as if fully set forth herein.

124. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTIONFailure to Intervene Under
42 .S.C. § 1983 Against Individual Defendants

127. Plaintiff re-alleges and re-avers Paragraphs 1 through 126 of this Complaint as if fully set forth herein.

128. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

129. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

130. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION**Malicious Abuse of Process Under
New York State Law**

131. Plaintiffs re-allege and re-avers Paragraphs 1 through 130 of this Complaint as if fully set forth herein.

132. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.

133. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

134. Defendants intended to inflict substantial harm upon Plaintiffs.

135. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

136. Defendants abused the legal process to conceal their unlawful acts against Plaintiffs and receive credit for an otherwise invalid and illegal arrest.

137. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION**Malicious Abuse of Process Under
42 .S.C. § 1983 Against Individual Defendants**

139. Plaintiffs re-allege and re-avers Paragraphs 1 through 139 of this Complaint as if fully set forth herein.

140. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to prevent the termination of their employment due to their unlawful acts.

141. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

142. Defendants intended to inflict substantial harm upon Plaintiffs.

143. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

144. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and receive credit for an otherwise invalid and illegal arrest.

145. Defendants' actions deprived Plaintiffs of their right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

146. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

147. Plaintiffs re-allege and re-avers Paragraph 1 through 147 of this Complaint as if fully set forth herein.

148. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.

149. Defendant City breached that duty of care.

150. Defendant City placed defendants in a position where they could inflict foreseeable

harm.

151. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

152. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42. U.S.C. § 1983 Against Defendant City

154. Plaintiffs re-allege and re-avers Paragraphs 1 through 154 of this Complaint as if fully set forth herein.

155. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

156. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

157. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

158. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

159. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

160. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States.

161. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- r) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

Dated: New York, New York
December 15, 2022

Yours, etc.,



JOHN K. KOUROUPAS, ESQ.
GREENBERG & STEIN, P.C.

Attorney for Plaintiffs

ARIELLE MCCREADY and JUAN COSME

420 Lexington Avenue, Suite 2450

New York, New York 10170

(212) 681-2535

Our File No. 7010

TO:

City of New York
100 Church Street
New York, NY 10007

POLICE OFFICER JASON MERCHAN, SHIELD NO.: 012777

NARBBX

1 Police Plaza

New York, NY 10038

ATTORNEY'S VERIFICATION

JOHN K. KOUROUPAS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiffs ARIELLE MCCREADY and JUAN COSME,

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
December 15, 2022



JOHN K. KOUROUPAS

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ARIELLE MCCREADY and JUAN COSME,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JASON MERCHAN AND
JOHN and JANE DOES "1-10" Individually and
officially in their capacities as police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

GREENBERG & STEIN, P.C.
Attorneys for Plaintiffs
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535

TO: